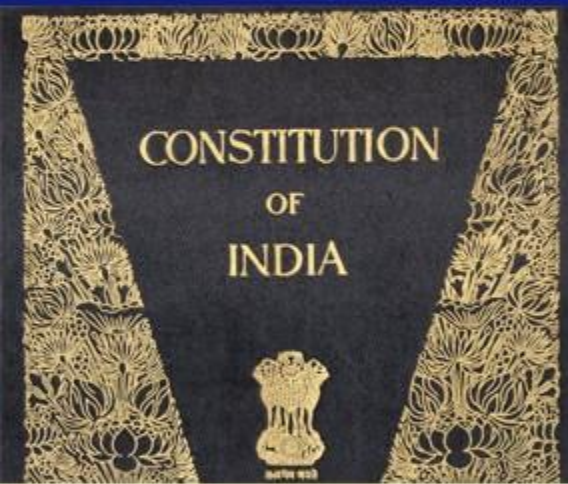


INDIAN POLITY



MODULE - 5

INDIAN COUNCILS ACT OF 1861 AND 1892

INDIAN COUNCILS ACT OF 1861

This Indian Councils Act introduced a **grain of popular element** as it provided that the **Governor General's Executive council** which was till then composed of officials must now include some **nominated Indians as non-official members**.

BACKGROUND OF THE ACT



- 1 In the aftermath of the Mutiny of 1857, there was a general perception in England that it would be very difficult to secure the Government in India **without the cooperation of Indians in administration** and they wanted to include some Indians inside the administrative system.

INDIAN COUNCILS ACT OF 1861

BACKGROUND OF THE ACT



- 2 The Charter Act of 1833 had centralized the legislative procedures and completely deprived the Governments of Madras and Bombay of their power of legislations. Thus, there was a need to allow the provinces to make laws for themselves.
- 3 Also there was no representation of Indian people in the Governor General's Council. There was a growing demand that some representative element should be introduced.

INDIAN COUNCILS ACT OF 1861

FEATURES OF THE ACT

- 1 It made a beginning of representative institutions by associating Indians with a law making process that is some Indians were nominated as non-official members of the legislative council.



SIR DINAKAR RAO

- 2 In 1862, Lord Canning the then Indian Viceroy nominated 3 Indians to his Legislative Council- the Raja of Benares, the Maharaja of Patiala and Sir Dinakar Rao
- 3 It initiated the process of decentralization by restoring the legislative powers to the Bombay and Madras Presidencies.
- 4 It also provided for the establishment of new legislative councils for Bengal, North Western Frontier Province and Punjab which were established in 1862, 1866 and 1897 respectively.

INDIAN COUNCILS ACT OF 1861

FEATURES OF THE ACT



**Portfolio System was
introduced**

4

It introduced the portfolio system i.e. the Act empowered the Governor General to delegate special task to individual members of the Executive Council and all members have their own portfolio. This was the beginning of the portfolio system in India.

INDIAN COUNCILS ACT OF 1861

FEATURES OF THE ACT



ORDINANCE

- 5 It empowered the Viceroy to issue ordinances without the concurrence of legislative council during an emergency.
- 6 The life of such an ordinance was six months.

INDIAN COUNCILS ACT OF 1861

HISTORY OF ORDINANCE-MAKING POWER

- 1 The constitutional history relating to the Ordinance-making power of the President in India is traceable to the Indian Councils Act, 1861.
- 2 Under this Act, the Governor-General could promulgate Ordinances in case of Emergency which could remain in force for not more than six months.
- 3 The Government of India Act, 1935 provided for promulgation of Ordinances by the Governor-General in his discretion or in exercise of his individual judgement.
- 4 The Governor-General was, however, required to obtain previous instructions from the Crown in certain cases.
- 5 The Governor-General also had the power to issue Ordinances even when the Legislature was in session.
- 6 An extension for a further period not exceeding six months was possible by a subsequent Ordinance through this Act.
- 7 Under the 1935 Act, the Crown had the power to disallow an Ordinance. The India (Provisional Constitution) Order, 1947, however, omitted this provision.

INDIAN COUNCILS ACT OF 1861

ANALYSIS OF THE ACT



- 1 The members **were nominated** and their functions were **confined exclusively to the considerations of the Legislative proposals** placed before it by the Governor General.
- 2 This legislative council so created was **neither representative nor deliberative** in any sense. It could not in any manner criticize the Acts of the administration or the conduct of the authorities.

INDIAN COUNCILS ACT OF 1861

ANALYSIS OF THE ACT



- 3 Even in Legislation, **effective powers were reserved to the Governor General** such as
- a) **Giving prior sanctions to bills** relating to certain matters which could not be in discussed in legislative council
 - b) **Vetoing the bills** after they were passed or reserving for the consideration of the Crown
 - c) **Issuing ordinances**, which were to have the same authority as Acts made by the Legislative Council

- 4 However, this Act fulfilled the aspirations of the associating Indians in the law making system. Hence in short, the Act laid the foundation of representative mechanism in India.

INDIAN POLITY

INDIAN COUNCILS ACT OF 1892

BACKGROUND OF THE ACT



- 1 Indians were gradually becoming aware of their rights with the growth of nationalism. The Indian leaders wanted admission of the considerable number of elected representatives.
- 2 They also wanted right to discuss on budget matters. However, the British were averse to the idea of elections.
- 3 The process of indirect elections was the remarkable achievement of the Act of 1892.

INDIAN COUNCILS ACT OF 1892

FEATURES OF THE ACT

- 1** It increased the number of non-official members in the Central and the Provincial legislative council, but maintained the official majority in them.
- 2** The powers of the legislative council was increased- the members could now discuss the budget without right to vote on it.
- 3** They were also not allowed to ask supplementary questions.
- 4** A system of indirect elections was introduced to elect the members of the Council. The Universities, the District Boards, Municipalities, Jamindars and the Chambers of the Commerce were empowered to recommend members to provincial councils.
- 5** The Legislative councils were empowered to make new laws and repeal old laws with the permission of Governor General.

INDIAN COUNCILS ACT OF 1892

ANALYSIS OF THE ACT

1 It was the first step towards the representative form of Government in Modern India. The number of Indians in the Legislative Councils were increased and this was a positive step.

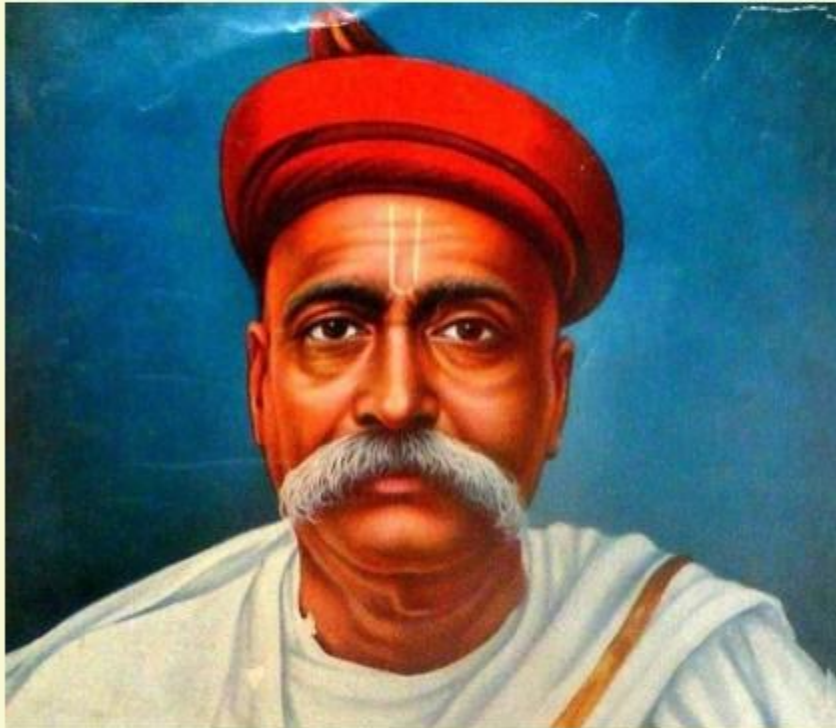


2 However, the system of indirect elections prevented the direct contact between the public and representatives in many ways this Act was also served as a reason behind the rise of militant nationalism in the coming times.

3 The Congress' policy of petition, prayer and protest was seen as weakness by the British Government and this policy of Congress was also seen as a lack of positive development and called for more aggressive policy against British Rule.

INDIAN COUNCILS ACT OF 1892

ANALYSIS OF THE ACT



4 The rise of militant nationalism was evident from the following note by B.G.Tilak: “Political rights will have to be fought for. The moderates think these can be won by the persuasion. We think that they can be obtained only by strong pressure...”

5 It was seen as an important milestone that led to the establishment of Parliamentary Government at a later stage.

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